2012 SEP 18 PM 3:54

FILE DO NOT MAIL

Bernard J. Youngblood
Wayne County Register of Deeds
September 18, 2012 03:54 PM
Inst:2012377266 SHD Pages:7
Liber:50130 Page:639

400872F01 Timmony - FC J

**SHERIFF'S DEED ON MORTGAGE SALE**

This Indenture Made this 6th day of September, A.D. 2012, between, Felicia Mack, a Deputy Sheriff in and for Wayne County, Michigan, whose address is 4747 Woodward Ave Detroit, Michigan 48201-1307, party of the first part, and OneWest Bank, FSB, whose address is 2900 Esperanza Crossing, Austin, TX 78758, party of the second part (hereinafter called the grantee).

WITNESSETH, That Whereas a certain mortgage made by Lally Timmony, a single woman, original mortgagor(s), to Financial Freedom Funding Corporation, a Subsidiary of Lehman Brothers Bank, FSB, Mortgagee, dated February 19, 2004, and recorded on April 1, 2004 in Liber 40353 on Page 2612, and assigned by mesne assignments to OneWest Bank, FSB as assignee as documented by an assignment dated June 13, 2012 recorded on June 22, 2012 in Liber 49911 on Page 730, in Wayne county records, Michigan and

WHEREAS, said mortgage contained a power of sale which has become operative by reason of a default in the condition of said mortgage, and

WHEREAS, no suit or proceedings at law or in equity have been instituted to recover the debt secured by said mortgage or any part thereof, and

WHEREAS, by virtue of said power of sale, and pursuant to the statute of the State of Michigan in such case made and provided, a notice was duly published and a copy thereof was duly posted in a conspicuous place upon the premises described in said mortgage, that the said premises, or some part of them, would be sold at 11:00 AM on the 6th day of September, A.D. 2012, at public vendue, that being the place of holding the Circuit Court for Wayne County where the premises are situated and

WHEREAS, pursuant to said notice I did, at on the day last aforesaid, expose for sale at public vendue the said lands and tenements hereinafter described, and on such sale did strike off and sell the said lands and tenements to the grantee for the sum of Six Thousand Six Hundred and 00/100 Dollars ($6,600.00), that being the highest bid therefore and the grantee being the highest bidder, and

WHEREAS, said lands and tenements are situated in the City of Highland Park, Wayne County, Michigan, more particularly described in exhibit A, attached and commonly known as:

47 Church St

Property Tax Parcel ID 43-002-03-0046-000

This property may be located within the vicinity of farmland or a farm operation. Generally, accepted agricultural and management practices, which may generate noise, dust, odors, and other associated conditions, may be used and are protected by the Michigan right to farm act.

Now, this Indenture Witnesseth, That I, the Deputy Sheriff aforesaid, by virtue of and pursuant to the statute in such case made and provided, and in consideration of the sum of money so paid as aforesaid, have granted, conveyed, bargained and sold, and by this deed do grant, convey, bargain and sell unto the grantee, its successors and assigns, forever, all the estate, right, title and interest, which the said Mortgagor(s) had in said land and tenements and every part thereof, on the 19th day of February A.D. 2004, that being the date of said mortgage, or at any time thereafter, to have and to hold the said lands and tenements and every part thereof to the said grantee, its successors and assigns forever, to their sole and only use, benefit and behoof forever, as fully and absolutely as I, the Deputy Sheriff aforesaid, under the authority aforesaid, might, could or ought to sell the same.

IN WITNESS WHEREOF, I have hereunto set my hand and seal, the date and year first above written.

Felicia Mack

Deputy Sheriff in and for the County of Wayne

STATE OF MICHIGAN
COUNTY OF WAYNE

On this 6th day of September, A.D. 2012, before me, a Notary Public in and for said County of Wayne came Felicia Mack, a Deputy Sheriff of said County, known to me to be the individual described in and who executed the above conveyance, and who acknowledged that he executed the same to be his free act and deed as such Deputy Sheriff.

Notary Public, Wayne County, Michigan
My commission expires:
Acting in the county of Wayne

THIS INSTRUMENT IS EXEMPT FROM COUNTY TRANSFER TAX PURSUANT TO 12 U.S.C. 1723a(c) and MCL 207.505(c).

THIS INSTRUMENT IS EXEMPT FROM STATE TRANSFER TAX PURSUANT TO 12 U.S.C. 1723a(c); MCL 207.526(c); and MCL 207.526(v).

Laura Dyament
Notary Public
Appointed in Macomb County
Acting in Wayne County
Appointment Expires on 11/19/2014

Fannie Mae (RC) #6000108191

400872F01 Timmony - FC J

Fannie Mae (RC) #6000108191

**Exhibit A - Property Description**

Lot 46, Block 3, Steven's and Chandler's Subdivision, as recorded in Liber 20, Page 10 of Plats, Wayne County Records.

**Team F - Lally Timmony**

TROTT & TROTT, P.C. Attorneys and Counselors 31440 Northwestern Highway, Suite 200 Farmington Hills, Michigan 48334-2525 THIS FIRM IS A DEBT COLLECTOR ATTEMPTING TO COLLECT A DEBT. ANY INFORMATION WE OBTAIN WILL BE USED FOR THAT PURPOSE. PLEASE CONTACT OUR OFFICE AT THE NUMBER BELOW IF YOU ARE IN ACTIVE MILITARY DUTY. ATTN PURCHASERS: This sale may be rescinded by the foreclosing mortgagee. In that event, your damages, if any, shall be limited solely to the return of the bid amount tendered at sale, plus interest. MORTGAGE SALE - Default has been made in the conditions of a mortgage made by Lally Timmony, a single woman, original mortgagor(s), to Financial Freedom Funding Corporation, a Subsidiary of Lehman Brothers Bank, FSB, Mortgagee, dated February 19, 2004, and recorded on April 1, 2004 in Liber 40353 on Page 2612, and assigned by mesne assignments to OneWest Bank, FSB as assignee as documented by an assignment, in Wayne county records, Michigan, on which mortgage there is claimed to be due at the date hereof the sum of Forty-Nine Thousand Eight Hundred Ninety-Three and 71/100 Dollars ($49,893.71). Under the power of sale contained in said mortgage and the statute in such case made and provided, notice is hereby given that said mortgage will be foreclosed by a sale of the mortgaged premises, or some part of them, at public vendue, at the place of holding the circuit court within Wayne County, at 11:00 AM, on September 6, 2012. Said premises are situated in City of Highland Park, Wayne County, Michigan, and are described as: Lot 46, Block 3, Steven's and Chandler's Subdivision, as recorded in Liber 20, Page 10 of Plats, Wayne County Records. The redemption period shall be 6 months from the date of such sale, unless determined abandoned in accordance with MCLA 600.3241a, in which case the redemption period shall be 30 days from the date of such sale. If the property is sold at foreclosure sale under Chapter 32 of the Revised Judicature Act of 1961, pursuant to MCL 600.3278 the borrower will be held responsible to the person who buys the property at the mortgage foreclosure sale or to the mortgage holder for damaging the property during the redemption period. Dated: August 3, 2012 For more information, please call: FC F (248) 593-1313 Trott & Trott, P.C. Attorneys For Servicer 31440 Northwestern Highway, Suite 200 Farmington Hills, Michigan 48334-2525 File #400872F01 (08-03)(08-24)

**AFFIDAVIT OF PUBLICATION**

(Affidavit of Publisher)

STATE OF MICHIGAN,
ss.
COUNTY OF OAKLAND

The undersigned, an employee of the publisher of Detroit Legal News, having knowledge of the facts, being duly sworn deposes and says that a notice, a true copy of which is annexed hereto, was published in Detroit Legal News a newspaper circulated in Wayne County on August 3, August 10, August 17, August 24, 2012 A.D.

Cindy C. Lawler

Subscribed and sworn before me on this 24th day of August 2012 A.D.

Jennifer Dado

Notary Public Oakland County, Michigan. My commission expires: January 25, 2019 Acting in Oakland County, Michigan.

**FNMA**

| | |
|---|---|
| Attorney: | Trott & Trott P.C. - Trott & Trott P.C. (team f) Wayne |
| AttorneyFile#: | 400872F01 |
| Notice#: | 1089207 |

**Team F - Lally Timmony**

TROTT & TROTT, P.C. Attorneys and Counselors 31440 Northwestern Highway, Suite 200 Farmington Hills, Michigan 48334-2525 THIS FIRM IS A DEBT COLLECTOR ATTEMPTING TO COLLECT A DEBT. ANY INFORMATION WE OBTAIN WILL BE USED FOR THAT PURPOSE. PLEASE CONTACT OUR OFFICE AT THE NUMBER BELOW IF YOU ARE IN ACTIVE MILITARY DUTY. ATTN PURCHASERS: This sale may be rescinded by the foreclosing mortgagee. In that event, your damages, if any, shall be limited solely to the return of the bid amount tendered at sale, plus interest. MORTGAGE SALE - Default has been made in the conditions of a mortgage made by Lally Timmony, a single woman, original mortgagor(s), to Financial Freedom Funding Corporation, a Subsidiary of Lehman Brothers Bank, FSB, Mortgagee, dated February 19, 2004, and recorded on April 1, 2004 in Liber 40353 on Page 2612, and assigned by mesne assignments to OneWest Bank, FSB as assignee as documented by an assignment, in Wayne county records, Michigan, on which mortgage there is claimed to be due at the date hereof the sum of Forty-Nine Thousand Eight Hundred Ninety-Three and 71/100 Dollars ($49,893.71). Under the power of sale contained in said mortgage and the statute in such case made and provided, notice is hereby given that said mortgage will be foreclosed by a sale of the mortgaged premises, or some part of them, at public vendue, at the place of holding the circuit court within Wayne County, at 11:00 AM, on September 6, 2012. Said premises are situated in City of Highland Park, Wayne County, Michigan, and are described as: Lot 46, Block 3, Steven's and Chandler's Subdivision, as recorded in Liber 20, Page 10 of Plats, Wayne County Records. The redemption period shall be 6 months from the date of such sale, unless determined abandoned in accordance with MCLA 600.3241a, in which case the redemption period shall be 30 days from the date of such sale. If the property is sold at foreclosure sale under Chapter 32 of the Revised Judicature Act of 1961, pursuant to MCL 600.3278 the borrower will be held responsible to the person who buys the property at the mortgage foreclosure sale or to the mortgage holder for damaging the property during the redemption period. Dated: August 3, 2012 For more information, please call: FC F (248) 593-1313 Trott & Trott, P.C. Attorneys For Servicer 31440 Northwestern Highway, Suite 200 Farmington Hills, Michigan 48334-2525 File #400872F01 (08-03)(08-24)

**EVIDENCE OF SALE**

(Affidavit of Posting)

STATE OF MICHIGAN
ss.
COUNTY OF OAKLAND

Wendell Byrd being duly sworn, deposes that on the 7th day of August, 2012 A.D, he/she posted a notice, a true copy of which is annexed hereto, in a conspicuous place upon the premises described in said notice by attaching the same in a secure manner to the front door.

Wendell Byrd

Subscribed and sworn before me on this 8th day of August 2012 A.D.

Sheree B. Glynn

Notary Public Oakland County, Michigan. My commission expires: February 5, 2014 . Acting in OAKLAND County, Michigan.

CIRCLE IF Vacant
Multi-Unit Upper Unit Lower Unit
Multi-Addr Unit 1 Unit 2 Unit A Unit B
Condo Mobile/Manufactured Home No Dwelling

Attorney Office: Trott & Trott P.C. (team f) Wayne
Attorney File# 400872F01050600
Notice ID# 1089207

Timmony, Lally T&T #400872F01

NON-MILITARY AFFIDAVIT
STATE OF MICHIGAN
SS.
COUNTY OF OAKLAND

The undersigned, being first duly sworn, deposes and says that upon investigation she/he is informed and believes that no borrower(s) are currently in active military service of the United States.

Terese McDermott

Signed and sworn to before me in Oakland County, Michigan, on this 4th day of September, 2012 by Terese McDermott.

Anita C. Keith, Notary public
State of Michigan, County of Oakland
My commission expires August 19, 2017
Acting in the County of Oakland

EVIDENCE OF SALE (Affidavit of Auctioneer)
STATE OF MICHIGAN
SS.
COUNTY OF WAYNE

ORIGINAL
12-7946

Felicia Mack
Felicia MACK

, being duly sworn, deposes and says that he is a Deputy Sheriff of said Wayne; that he acted as Auctioneer, and made the sale as described in the annexed Deed pursuant to the annexed printed notice: that said sale was opened at 11:00 AM on the 6th day of September, A.D. 2012, at the In Courtroom 1607, Wayne County Circuit Court Tower in the Coleman A. Young Municipal Center in Detroit, Michigan, that being the place of holding the Circuit Court in said Wayne County; that the highest bid for the lands and tenements therein described was Six Thousand Six Hundred and 00/100 Dollars dollars $6,600.00 made by OneWest Bank, FSB; that said sale was in all respects open and fair; and that he did strike off and sell lands and tenements to said bidders, which purchased the said lands and tenements fairly and in good faith, as deponent verily believes.

Felicia Mack

Deputy Sheriff in and for Wayne County, Michigan

Signed and sworn to before me in Wayne County, Michigan, on this 6th day of September, A.D. 2012

Notary Public, Wayne County, Michigan
My Commission Expires:
Acting in the county of Wayne

Laura Dyament
Notary Public
Appointed in Macomb County
Acting in Wayne County
Appointment Expires on 11/19/2014

I DO HEREBY CERTIFY that the last day to redeem is March 6, 2013, after which the within Sheriff's Deed will become operative, unless determined abandoned in accordance with MCLA 600.3241a, or unless redeemed according to the law, in such case made and provided.

Felicia Mack

Deputy Sheriff in and for Wayne County, Michigan

Prepared By:
Terese McDermott (P71090)
Trott & Trott, P.C.
31440 Northwestern Highway, Suite 200
Farmington Hills, MI 48334-2525
T & T # 400872F01

**ATTN REGISTER OF DEEDS:** Please send all Redemption notifications and funds collected in your office to OneWest Bank, FSB c/o Trott & Trott, P.C., Post-Sale Unit, 31440 Northwestern Highway, Suite 200, Farmington Hills, MI 48334-2525.

ATTN PURCHASERS: This sale may be rescinded by the foreclosing mortgagee. In that event, your damages, if any, shall be limited solely to the return of the bid amount tendered at sale, plus interest. Please be advised that all 3rd party bidders are responsible for preparing and recording the Sheriff's Deed. TROTT & TROTT, P.C. Hereby expressly disclaims all liability relating to the foreclosure, preparation and recording of the Sheriff Deed.

**AFFIDAVIT OF MCL 600.3205 NOTICE**

STATE OF MICHIGAN)
COUNTY OF OAKLAND) SS.

NOW COMES Terese McDermott, who, first being sworn, deposes and says:

I am an attorney employed by Trott & Trott, P.C, and am duly authorized to execute this Affidavit on its behalf.

That I have reviewed the business records of Trott & Trott, P.C. and based on my review of those records, a written notice dated June 21, 2012 was served in the manner necessary according to MCL 600.3205a(3);

That said notice includes: (a) the reason for default and the amount due and owing; (b) the contact information for the mortgage holder, the mortgage servicer, or any agent designated by the mortgage holder or mortgage servicer; and (c) a statement of the borrowers' rights, all according to MCL 600.3205a(1);

That said notice includes a list of housing counselors as required by MCL 600.3205a(2); and

That the time for a housing counselor to notify the person designated under MCL 600.3205a(1)(c) of a request by the borrower(s) has expired without a request for a meeting.

FURTHER DEPONENT SAYETH NOT.

Terese McDermott

Attorney for OneWest Bank, FSB
Trott & Trott, P.C.
31440 Northwestern Highway, Suite 200
Farmington Hills, MI 48334-2525

Signed and sworn to before me in Oakland County, Michigan, on 9/4/2012

by Terese McDermott, Attorney for OneWest Bank, FSB

Anita C. Keith, Notary public
State of Michigan, County of Oakland
My commission expires August 19, 2017
Acting in the County of Oakland

T&T # 400872F01 Timmony, Lally

AFFIDAVIT OF PURCHASER

The Undersigned, being duly sworn, states as follows:

1. I am an employee of Trott & Trott, P.C. and am authorized as counsel to submit this Affidavit Of Purchaser. I have knowledge of the facts stated herein and am competent to testify concerning such facts regarding a foreclosure sale scheduled for September 6, 2012 with respect to certain real property (the "Property") commonly known as 47 Church St.

2. **This affidavit may only be recorded and used by OneWest Bank, FSB in the event it is the successful purchaser of the property on September 6, 2012. No other purchaser may utilize this affidavit.**

3. The last date the Property may be redeemed is March 6, 2013. ANY REDEEMING PARTY SHOULD NOTE THAT THIS DATE MAY CHANGE AS SET FORTH IN SUBSEQUENT AFFIDAVITS OR AS PROVIDED BY APPLICABLE LAW.

4. The amount necessary to redeem the Property is $6,600.00 (Six Thousand Six Hundred and 00/100 Dollars), plus interest at a per diem rate of $0.31 ( and 31/100 Dollars) from the date of sale to the date of redemption, plus any additional amounts that may be added pursuant to MCLA §600.3240(4). ANY REDEEMING PARTY SHOULD NOTE THAT THIS AMOUNT MAY INCREASE to include amounts paid by OneWest Bank, FSB for taxes, amounts necessary to redeem senior liens, condominium assessments, homeowner association assessments, community association assessments, insurance premiums, or any other amounts as provided by MCLA §600.3240(4), as well as interest thereon at the interest rate specified in the mortgage from the date of payment to the date of redemption.

5. OneWest Bank, FSB has designated Trott & Trott, P.C. as its designee responsible to assist an appropriate person redeeming the Property in computing the exact amount required to redeem the Property and to receive redemption funds. If you choose to utilize this assistance, contact Trott & Trott, P.C. at **RedemptionFigures@trottlaw.com** or by phone at (248) 593-1308. Pursuant to statute, Trott & Trott, P.C. will charge a fee of $150.00 (One Hundred Fifty And 00/100 Dollars) if you opt to use this assistance.

FURTHER DEPONENT SAYETH NOT.

Terese McDermott ( )
Attorney For OneWest Bank, FSB
Trott & Trott, P.C.
31440 Northwestern Highway, Suite 200
Farmington Hills, MI 48334-2525

Signed and sworn to before me in Oakland County, Michigan, on 9/4/2012 by Terese McDermott, Attorney for OneWest Bank, FSB.

Anita C. Keith, Notary public
State of Michigan, County of Oakland
My commission expires August 19, 2017
Acting in the County of Oakland

T&T #400872F01 Lally Timmony, Mortgagor(s).